

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 04/10/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties

EMAIL THE DEPARTMENT at dept32@contracosta.courts.ca.gov to request argument and

SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

CourtCall will **NOT** be used by D32.

Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1>

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-00901

CASE NAME: SALEHOMOUM VS. BAHRAMI-DAGHIGH

*HEARING ON MOTION IN RE: SANCTIONS FOR FAILURE OF COUNSEL: MICHAEL WADDINGTON TO OBEY RULES (CONTINUED FROM 03.13.2026)

FILED BY:

TENTATIVE RULING:

In view of counsel Waddington's motion to be relieved as counsel for Navid Bahrami-Daghigh, and the reasons therefore, the court denies the motion for sanctions.

2. 9:00 AM CASE NUMBER: C22-00901

CASE NAME: SALEHOMOUM VS. BAHRAMI-DAGHIGH

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

PARTIES TO APPEAR.

3. 9:00 AM CASE NUMBER: C22-02313

CASE NAME: LAURIE NOE VS. GENERAL MOTORS, LLC

*HEARING ON MOTION IN RE: TO DISMISS

FILED BY: GENERAL MOTORS, LLC

TENTATIVE RULING:

Before the Court is a motion by defendant General Motors, LLC to dismiss the action. For the reasons set forth, the motion is **denied**.

Background

Plaintiff Laurie Noe filed her complaint initiating this action on October 28, 2022. She filed her operative second amended complaint ("2AC") on July 31, 2023.

Plaintiff alleges she leased a 2019 Chevy Bolt electric vehicle, vehicle identification number ("VIN") 1G1FZ6S00K4113497 (the "Vehicle") manufactured and distributed by defendant General Motors, LLC ("GM") which had a "Battery Defect" more fully described in the operative second amended complaint ("2AC"). (2AC ¶¶ 6, 9, 23-29 [model years 2017 through 2022 affected by the Battery Defect].) She initiated this action on October 28, 2022. Plaintiff's 2AC filed in July 2023 alleges five causes of action: the first four causes action alleging claims under the Song-Beverly Consumer Warranty Act, Civil Code section 1790, *et seq.* ("Song-Beverly Act"), and a fifth cause of action for fraudulent inducement - concealment.

GM moves to dismiss the action on the ground that Noe is a member of a class in which a class action settlement was approved in the United States District Court for the Eastern District of Michigan ("Michigan District Court"), Case No. 2:20-cv-13256 TGB-CI (the "Class Action"). GM contends that Noe failed to opt out of the class settlement, that she is therefore bound by its terms, and that the class settlement fully resolves her claims in this action. Plaintiff opposes the